Title: Institutional Harms and the Abolition of Risk Assessment Tools in the Criminal Punishment System

Abstract: Risk assessment algorithms are built on mythologies of public safety that situate risk at the individual - they label some people “high risk” and others “low risk.” Individualized risk assessment justifies human rights abuses, mistreatment, and an overall deterioration of physical and mental wellness for incarcerated people while obfuscating institutional harms. This paper draws on abolitionist and carceral geography frameworks to change the scale of risk analysis by assessing the harms institutions pose to individuals rather than presuming individuals are risky. This paper argues for an abolition of individualized risk assessment in the criminal punishment system. We make our critique of individualized risk assessment through attending to the in-prison experience and the careful navigation by people who are incarcerated. To make this case, the paper counters the notion of risky individuals with an analysis of harmful institutions. In so doing, we quantify the differences between institutions and attend to the risks of the in-prison experience for people who are incarcerated using Pennsylvania as a site of study. This analysis of prisons as purveyors of harm combines an analysis of quantitative data from the Pennsylvania Department of Correction (PADOC) with accounts of formerly incarcerated people. This paper establishes that the analytic site of harm is the prisons through an attention to the landscape of harms embedded in the experience of incarceration.

Key words
Carceral geography, abolition geography, criminal punishment system, risk landscapes, algorithms, risk assessment, abolition

Poem #2

I wish life problems
Real life problems
Were like math problems
Find the proof
You multiply here, subtract there
Pooof!!! problem is solved
My imagination is greater than math though
It has shapes that cannot be modeled
And in it, I can time travel
Back to my younger self
Where I can take control of my life
Where I can be a better version of me
Where I can be more compassionate
Where I can be a better human being
But lately my imagination has been captured
My dreams has been captured
Even my nightmares are not mine
Of fences, walls, razor wires and bars
They play and replay in my mind
Of sleeping while dreaming
Or dreaming while asleep
Of anxious thoughts, Anxious men
And a reality crushing machine
So many old souls in young bodies
And young souls in old bodies
Surplus populations,
Compressed in a jar-like warehouse
Packaged on a conveyor belt and shipped
Stamped with the letters D. O. C.
A source of generational wealth to somebody
But No! Not me!
I refuse to be what they want me to be
I have been doing time
Like We are all doing time
Trying to kill it before it kills me
Each moment of time feels like an eternity
Enough for me to build a new earth
4.5 billion years
Enough for me to create
Grand canyons, Great continents, Oceans and seas
One sand particle at a time
Compressed under pressure
Rising to become a boulder on a mountain
From the deep waters of the sea
Like reincarnation
My soul lasting forever, At last free
So I can be a butterfly
Or a river valley
Or maybe an olive tree
so I could live at least a hundred years

And see a different world, another life
At last free
To think, to imagine, to dream
–H. Ali

Introduction

In this paper we draw on carceral and abolitionist geography to relocate the site of risk in the criminal punishment system. We do this through an explicit attention to harms in the prison system. Rather than regarding incarcerated people as a risk to society or the rest of the prison population, we assess the risk prisons pose to incarcerated people and society. We problematize the use of risk assessment algorithms through a mixed methods attention to the varied harms and experiences of prison for incarcerated people. Risk assessment tools, by centering individual people as risky, distract from the harms of being incarcerated. To upend this individualization, we explore harms by institutions within the Pennsylvania Department of Correction (PADOC)[1]. We find the harms of these institutions are systemic and uneven in order to better illuminate and understand the lived experiences of prison (as opposed to flattening all prison experiences as uniformly bad). Instead, we look at the variation of the carceral experience based on *where* individualized risk assessment routes incarcerated people. We explore these through an attention to differential experiences based on the specific correctional institution someone is placed in.

A period of incarceration starts with an extensive intake process to assess individuals' riskiness. Based on this evaluation of individual risk, a (n effectively meaningless) custody level is assigned and this leads to placement in a home institution. Which institution and the geographic distance from home matter tremendously for how a person will experience

[1] A note on terms - the Pennsylvania Department of Corrections calls prisons institutions. This language is not consistent with the way the term "institution" is typically used in a structural analysis. To avoid confusion, we use "institution" when talking about specific prisons and "systemic decisions" when we are referring to state wide policies implemented by the PADOC. We use the term institution to refer to specific built prisons consistent with the Pennsylvania Department of Corrections. When talking about our analysis of state-wide PADOC policies, we refer to systemic decisions or systemic risk.

incarceration. Once placed, one experiences transfers within the home prison or to a different prison and eventually to parole or release. People are commonly placed in solitary confinement, will participate in mandatory programming; they choose programs, have visitors, take classes, get a GED, have a great counselor, a bad correctional officer, etc. Within all of these experiences, there is a great deal of nuance and specificity to the risks of the carceral experience. Which prison, which block or which programs one has access to matters tremendously and we find people navigate their prison experiences to maximize their personal growth while seeking to reduce and mitigate the risk of harm. In such an examination, we find not only that prisons and policies produce uneven risks and outcomes but the risk of harm from incarceration is both a tool for control and obscured through the proliferation of risk assessment algorithms.

The horrors of incarceration and the prison industrial complex are well documented, but not all correctional institutions or systemic decisions are the same. That is to say, the in-prison experience is not a monolith and people navigate it accordingly. It is important to evaluate institutions to understand the various, nuanced hazards different prisons pose. Through tracing the processes of in-take, classification, and transfer - especially transfers that reflect the pervasive use of restrictive housing as people move through the nodes of the PADOC, we seek to "flip the script" and evaluate the ways prisons pose hazards to people (Meyer et al., 2022).

On the whole, our analysis reveals the absurdity of a concept of individualized risk. We seek to unpack risk assessment through a geographic attention to institutional variation as a case for abolition. Risk assessment tools have become a lynchpin of the modern system of racial capitalism and mass incarceration in the United States. The criminal punishment system has long been a testing ground for neoliberal tools of governance and the risk assessment algorithm is one of the strongest examples of this. Risk assessments reinforce an understanding of the criminal

qua prisoner (i.e., the individual) as a problem to be solved. Prison, in this colloquial conception, is the solution to the problem of the "criminal." Risk to society is located at the individual, obscuring the actuality of incarceration. Unraveling the logics of risk assessment tools through an attention to the geography of carceral harm, we contend, is essential to an abolitionist project.

In particular, we trace the consequences of risk assessment algorithms and their continuing determination of important aspects of people's lives *while* they are incarcerated. Prison intake defines risk in relation to individual behaviors and likelihood of violating prison rules or recidivism after release. Simultaneously, the reductive logic of individuals as risk scores encourages the strategic use of harms as strategies for incapacitation and deterrence in the prison. Due to these deeply embedded logics, we see the abolition of individualized risk assessment algorithms and their underlying logics as one prong of a larger abolitionist project. We make our critique of individualized risk assessment through attending to the in-prison experience and the careful navigation by people who are incarcerated. Attention to the spatial unevenness of the lived experience seeks to avoid an erasure of incarceration and opens meaningful, immediate pathways for "non-reformist reforms." (Akbar, 2023)

Unraveling Risk Assessment and the Abolitionist Project

Risk Assessment Tools are Counter-revolutionary

For over a century, rehabilitation and incapacitation practices (i.e., imprisonment) have relied on quantitative predictive risk assessment models. Such predictive risk assessment tools are an actuarial method used widely in what Rouvroy et al. (2013) term "algorithmic governmentality." These tools take quantitative data about groups and behaviors to create statistical models that predict the likelihood of individual behavior. Algorithmic predictive tools began with the Chicago School of Sociology's assertion that "prediction was possible" and are widespread across every point of the criminal punishment system (Harcourt, 2006). With the

inception of computers and the rise of statistical modeling of human behavior, risk assessment algorithms have proliferated far beyond the prison to reinforce neoliberal logics of securitization and individualization in everything from financial credit scores (Professor and Cornett, 2013) to student success (Shoukath and Chakkaravarthy, 2025).

The proliferation of this quantitative approach to human behavior spurred Harvey's critique of counter revolutionary theory. His geographic framework foregrounds an abolitionist geographic understanding of the far reaching influence of these types of algorithms in the social sciences. As he puts it, they are a type of "counter-revolutionary paradigm" (Harvey, 2009, 1972). The turn to a 'smart on crime' approach in the early 2000s encoded this approach as part of a broader policy initiative for "evidence based practices" in criminal punishment. Risk assessment methods have been used as a suite of seemingly progressive reforms to classify people as "low risk" to then reduce the prison population through cash-free bail and diversionary programming. While reforms to reduce the prison population have proliferated since the late 2010s, the actuarial and deeply neo-liberal notion of a criminologically "risky individual" has remained. This logic of risk in part explains why, even though reforms after 2008 have reduced the number of people in prison, there are more people under correctional supervision overall (Alexander, 2018; Kilgore, 2022; Massaro, 2020). In parallel to the overwhelming amount of evidence that prisons do not make society safe , the evidence that predictive risk assessment algorithms are biased (Hardison, 2019; Webster, 2025; Winerip et al., 2016), reliant on problematic underlying data (Dhar et al., 2025; Massaro et al., 2022), and not especially effective at their purported goals are well documented (Harvard Law Review, 2018; Schwerzmann, 2021; Schwirtz et al., 2016). Given the overwhelming evidence that predictive algorithms reinforce discrimination, we contend that they proliferate because they perform symbolic work. Risk

assessment in the prison system (and elsewhere) reinforces neoliberal conceptions of individual responsibility narratives.

Unfortunately, responses to their ineffectiveness does not always unravel this ideology. We thus see a proliferation after the First Step Act of 2018 of more sophisticated risk and needs assessment algorithms and an increased reliance on them in the criminal punishment system and other government systems (Harvard Law Review, 2018; Webster, 2025). Reducing the prison population has come to fully hinge on individualized risk analyses. In Hamlin's detailing of the abolitionist turn in geography, she notes the COVID-19 pandemic created an opening to accelerate decarceration efforts through "the release of aged and 'low-risk' inmates" (Hamlin, 2023). Critique of the biases in these predictive tools often leads to tweaking the variables and the weighting schemes without ever critiquing the underlying individualized logic of a "risky" person (Darling and Stauffer, 2024). However, it is not primarily the variables being weighted and analyzed to predict individual behavior that is the problem. The fundamental problem is an implicit denial of systemic risk through an insistence that the risk is solely situated with the individual, which manifests in the kinds of variables that are recorded and analyzed, and the "risk functions" that are calculated.

A small contribution to that wider unfurling is to consider the ideology of risk - what does it mean to decarcerate "low risk" people? Who is low risk and how do they become so? Do the specific institutions where they are incarcerated contribute to this low risk? The ideology of risk has become quite literally encoded in the reduction of people currently incarcerated. This ideology has led to a proliferation of risk assessment and surveillance tools to manage a digitally detained population. This digital encoding of risk (inaccurately) locates failure on the bodies of the blamed while obscuring the systemic failures (Lageson, 2020). Abolition geography's

uplifting of Du Bois's (1970) abolition democracy broadens the realm beyond ending mass incarceration to reconsider the proliferation of unfreedom and the structural entrenchment of inequality, oppression and harm.

The Abolitionist Perspective on Risk and Harm

Abolitionist geography is a central analytic frame for this project because it deploys a notion of structural harm. Specifically, abolitionist scholarship traces systemic harms of racial capitalist institutions, such as the criminal punishment system. Gilmore's (2007) seminal text *Golden Gulag: Prisons, Crisis and Surplus in California,* sparked scholarship establishing the damage prisons do. Fundamentally, this scholarship demonstrates prisons are not meant to reduce risk or make society safer, prisons are built to resolve crises and contradictions of capitalism. Much scholarship to date plainly supports her early findings that prisons address crises of overaccumulation of labor, land, financial capital and state capacity at the expense of marginal communities in particular times and places - providing clear "geographical fixes" (Harvey, 2006). More recently, Norton et al. (2024), Schept (2022) and Story (2019) have all demonstrated the continued ideological and material roles played by prisons to maintain a racial capitalist ordering, all at the expense of safe communities.

Abolitionist scholars have specified not just what prisons do, but also the damage created in their wake. It is calls for abolition that most strongly document the damaging role of incarceration through the maintenance of racial capitalism (Wang, 2018). This work establishes how this maintenance is done through ideological and material means of violence and dispossession (Dozier, 2019; Massaro and Boyce, 2021; Nguyen, 2021). Abolitionist and carceral scholars document the clear and far reaching material dispossession of policing and incarceration for already vulnerable communities (Boyce, 2021; Boyce et al., 2023; Launius and

Boyce, 2021). The ideology of extractive policing and racially targeted containment has proliferated to include a wide range of institutions in the neoliberal era. Through an abolitionist lens Roberts similarly demonstrates that Child Protective Services (CPS agencies) is a family policing system that "scapegoat[s] parents for societal harms to their children, and to buttress the racist, patriarchal and capitalist status quo" (2022, p. 22). This focus obscures the harms of the "child welfare" system as such and the racially uneven harms it distributes.

Critical attention to geographies of migration also refocuses the locus of harm. Such scholarship analytically shifts away from the "illegal" migrant onto the systemic harms that give rise to their position (Jones, 2016). Increased migration and pressure on borders (both international and domestic) are the result of the instability wrought by capitalism and imperialism. Borders are rigorously enforced to "divide the rich from the poor, white bodies from brown/black bodies…" (Walia, 2013) and prisons function as one such border (Loyd et al., 2012). In a critical analysis of borders and immigration policy, Walia counters "the inhumane ideology of border control" by drawing attention to "the violence of colonial displacements, capital circulations, labor stratifications in the global economy and structural hierarchies of race, class, gender, ability and citizenship status" (2013, 3).

While this lens has not been directly applied to carceral risk assessment, we see the need for this focus. Risk assessment, too, has woven its way into many aspects of racial capitalist systems that abolitionist scholars engage with (Collective et al., 2021; Gilmore, 2022; Kaba, 2021). Risk assessment tools with this driving logic to "scapegoat" proliferate across a wide range of government agencies, including assessments for "at risk" youth (Noble, 2018), children welfare services (Abdurahman, 2021; Samant et al., 2023), community safety (Wang, 2018), and immigration enforcement (Frankel, 2022; Hausman, 2025). Notably, risk assessment even works to

obscure structural risk in financial and real estate markets. The privatization of insurance markets and capitalism's externalization of environmental harms has enabled this logic and the various forms of risk assessments for households and corporations to grow and normalize. Risk assessments associated with extreme, climate related, environmental hazards is one tangential example where risk assessments obscure the locus of risk and leave individual entities responsible for hedging against their own vulnerabilities (Bullard and Wright, 2009; Kallianos et al., 2023; Ribot, 2023). This focus obscures structural risk and normalizes the hazards of profit extraction and externalized cost (Beck, 1992).

Given this ubiquitousness, abolishing risk assessment has far-reaching potential for unraveling racial capitalism materially and ideologically. Through a close read of somatic carceral experience in prison (Bloch and Olivares-Pelayo, 2024), we seek to address the obfuscation of risk assessment and move the assignment of risk to the criminal punishment system and reveals the uneven geographies of risk and harm across the prison system. Conceptualizing structural risk establishes the prison system and carceral institutions as the site of risk for an individual. Approaching prisons as harmful, through a geographic lens, also requires establishing the uneven risks incurred by incarcerated people based on their subjecthood and how it is constituted by the risk assessment algorithm. Our attention to the risk prison poses to the prisoner is an analytic shift that is well supported by a wide range of studies and scholarship that demonstrate the damaging effects of the prison industrial complex (Collective et al., 2021; Gilmore, 2022; Kaba, 2021). To date, little work has been directed toward such an inversion of the risk logic, but some work begins to suggest this as a path forward (Meyer et al., 2022; Pruss, 2023). We see a locating of risk in prisons as essential to this unraveling. Drawing on an abolitionist rethinking of the social constitution of risk, vulnerability and harm, we seek to

make a case for the abolition of risk assessment tools by refocusing on the geography of carceral harms that risk assessment tools obscure. The risk assessment algorithm does not seek to mitigate harms, instead it obfuscates and devalues the risk to the incarcerated person.

We refocus the frame of risk by expressly examining the ways in which the prison is harmful. In order to focus on the structural harms of imprisonment, it is necessary to understand the in-prison experience of people. To this end, scholars have called for greater attention to the "somatic carceral experience" (Bloch and Olivares-Pelayo, 2024, 2021) to counter the assumption that prison is simply a uniform container. In the wake of the State's ongoing dissolution of a distinction between immigrant and criminal, we note the importance of discernment between incarceration's graduated and differentiated experiences. A lack of differential analysis fails to meaningfully understand incarceration and its capriciousness on two fronts. One is the wide variations of prisons, their personnel and their policies. Second, and more importantly, this erases the agency and perspectives of incarcerated people. People are incarcerated for a wide range of reasons and they navigate potential harms, they world-make and they attempt to find meaning and growth while incarcerated. Our analysis seeks to understand their agency, which is rooted in their nuanced understandings of variations between different prisons and programs as they navigate this space over many years. In other words, we draw on the somatic carceral experience to illuminate a structural terrain of risk, harm and well-being.

Methods for Assessing the Harms of Imprisonment

We build this terrain through a mixed method approach[2]. Firstly, this paper draws from interviews and focus groups with people who had been previously incarcerated by the PADOC. Working with undergraduate students and formerly incarcerated research assistants, we used snowball sampling to find participants. [redacted] conducted ten open-ended interviews (see Appendix A for the guiding question) during the fall of 2023. In addition, [redacted] and another undergraduate student conducted two focus groups, one in [redacted], PA and one [redacted] PA. Each focus group had 4 formerly PADOC incarcerated participants. This amounted to about 20 contact hours across 18 participants[3]. These interviews and focus groups centered on peoples' experience with the intake process, transfer and the overall impact of incarceration on their wellbeing. We triangulated (Hesse-Biber, 2012) the oral accounts with an extensive review of PADOC policy and court documents outlining their policy and procedures related to classification and intake, mental health diagnostics and restrictive housing between 2010 and 2022. We also examined news coverage of prisoner classification and transfers, including articles from the Prison Journalism Project - a news outlet of compiled works from incarcerated journalists.

In addition to these qualitative insights on the lived impacts of incarceration, we differentiate the in-prison experience through quantitative analysis. We analyzed public data on

[2] Since 2018 the authors have been part of an interdisciplinary research team. They have an established collaboration dedicated to multifaceted and mixed-methods analyses of algorithms used by prisons to securitize and incapacitate incarcerated people. A number of justice impacted and undergraduate students have collaborated on this project as well.

[3] We recruited participants through two justice impacted community partners. One based in [redacted], PA who worked as a reentry support specialist, he suggested a few people to interview and helped recruit the focus group. The second is a research informant who has worked with [redacted] since her dissertation work in 2011. He similarly suggested people to interview and helped recruit the focus group. Both were paid as research assistants. Participants were paid $50 for joining an interview or focus group and would additionally suggest people they knew who would be interested. We are committed to a paid model because we believe it appropriately values the expert knowledge of lived experience with the criminal punishment system.

restrictive housing using PA DOC's monthly reports and drew from a data set we requested from the PADOC in 2018 using the Corrections Research Approach Request. We requested data on incarcerated people, including those who have been paroled, who were in the system in 1997, 2002, 2007, 2012, and 2017. The requested set contains data on 146,793 people who were incarcerated in the years we requested. This data is de-identified. It has all variables that influence parole outcomes for people incarcerated by the PADOC. Our variables of interest such as transfers in and out of institutions, misconducts, and assignment to restrictive housing all have downstream impacts on parole outcomes for people. We did an additional request for and received data containing the same variables as our first request for the years 2019, 2020, 2021, and 2022, 2023, and 2024 in April 2025. This data contains 84,181 unique people who were incarcerated in the years from 2019-2023, with 48,858, 44,390, 42,251, and 43,524, and 45,886 people incarcerated in 2018, 2020, 2021, 2022, and 2023 respectively. We used the requested PADOC data to understand key facets of transfers to and from institutions from 2004 to 2015 (as indicated in Figures 3 to 6.) We also used the requested PADOC data to create (mean monthly) misconduct counts and rates within each institution for 2023 (See Table 2.) Additionally, we used monthly statistical reports for each month of the year from PADOC's website[4] to compute the means of percentage capacity, the end-of-month population , the restrictive housing counts for 2023. With this data, we created differentiated rates and incidences of transfers in and out of an institution, misconducts, and assignment to restrictive housing by prison. (See Table 2 for details.) Furthermore, we used publicly available information from the PADOC to compile information on the security levels, geographic region within PA that the prison is located in ("Eastern", "Central", and "Western") and Full-Time Employees (See Table 1.)

[4] https://www.pa.gov/agencies/cor/about-us/research-and-statistics/reports-and-dashboards

We organize our findings around an attention to three interrelated components of the carceral experience: prisoner intake, prisoner transfer, and the use of restrictive housing as punishment. We firstly look at the process of prisoner intake, which is the first time a risk assessment algorithm is used during incarceration. This process is framed as being data-driven and needs-focused by the PADOC. However, we find this is a process designed to ensure control of incarcerated people precisely by using unpredictability and harm as a tool for control. Our interviews show people artfully navigate intake as a process that could render them vulnerable to continued harms. After intake, we explore likely routes for any incarcerated person in the PADOC. People will be transferred from one prison to another at least once after intake and they will likely move around while in one prison. In addition to transfers, we look at the use of, what is effectively, solitary confinement by the PADOC. PADOC's official policy on restrictive housing is mainly divided into "administrative" (Policy DC-ADM 802) and "disciplinary" categories (Policy DC-ADM 801). Prison authorities use "disciplinary custody" as solitary confinement as a punitive strategy in response to misconduct charges, while "administrative custody" is a management tool that is used to separate people deemed to pose a risk to the safety of staff or other incarcerated people or those who are deemed to be (or feel) unsafe in the general prison population. While the underlying reasons vary, the outcomes and conditions of both administrative and disciplinary custody are similar. In spite of the well documented harms of the resulting solitary confinement, it is widely used and justified as necessary for securing the prison and reducing risk. In closing, we reflect on the subsequent downstream impacts of incarceration as an incurred harm to our participants.

Intake and the constitution of a risky subject

Since the early 1990s, everyone starts their time in the PADOC with an extensive intake process driven by the aforementioned logic of predictive risk assessment. Figure 1 shows the general process and the diagnostics and algorithms used -making them appear smooth and rational. However, none of this information is publicly available. It is either proprietary or redacted out of concern people would "game" these tools and tests (PADOC, 2011). Following the 1989 SCI Camp Hill Riots[5], the PADOC began using the Pennsylvania Additive Classification Tool (PACT) to designate the risk incarcerated people pose to the institution. This was used until 2022, when the PADOC switched to the PA Strong-R Risk and Needs Assessment tool to align with federal standards (PADOC, 2025). In either case, the intake process is designed to consider how risky an individual may be and to incapacitate those deemed "high risk."

[5] We discuss this event at length elsewhere. It was a pivotal event from the perspective of the PADOC and the response ushered in much of the algorithm and classification systems we analyze in this paper. These incidents are widely known and referred to as riots by the Department of Corrections and the news media coverage of the incident. We refer to them as the Camp Hill Riots throughout for clarity and deference to colloquial terminology while acknowledging the word's severe limitations (Wang, 2018).

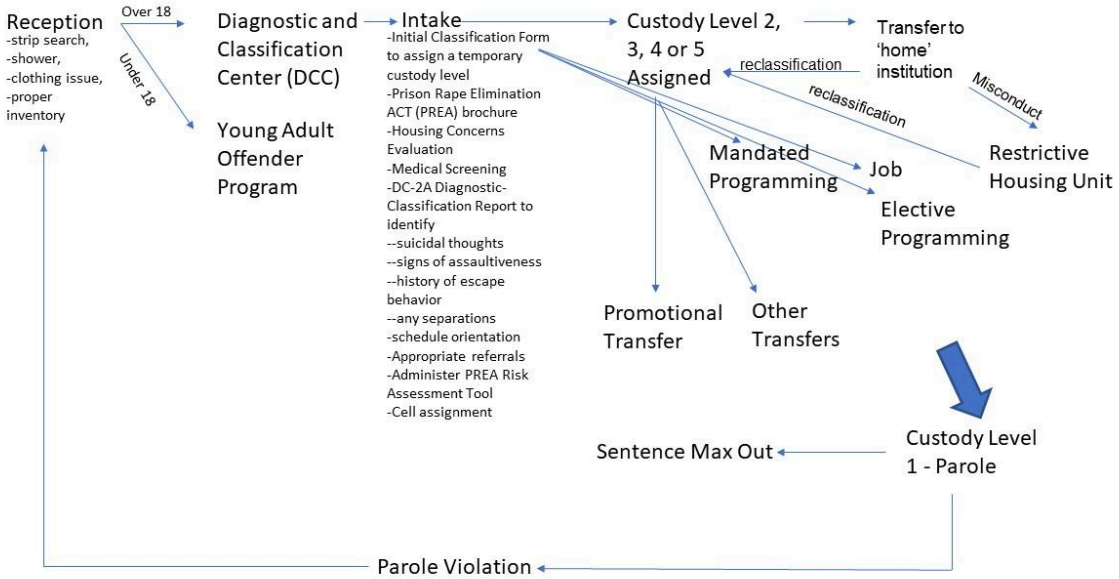


Figure 1: Flow chart of the intake process and routes afterward. Incarcerated people are assigned a custody level and mandated program during the intake process. This sets a variety of possible path dependencies. Developed by authors based on the PADOC Intake Guide (Harry, 2023).

We find that intake has a complex intersection with structural harm because it determines so much of your life in prison. However, the rationality of the policies outlined in the Intake Guide provided by the PADOC starkly contrast with the lived experience of intake our participants describe. We asked participants to discuss their experiences of the intake process. They discussed the emotional, mental and physical challenges of facing the initial reality of incarceration. The overwhelming sentiment was that intake classification is situated inside a larger acculturation into prison meant to leave them feeling vulnerable, powerless and *at risk*. We found intake taught interviewees to manage their time in prison with a risk and harm mitigation mindset. In other words, they were trying to survive the potential and unpredictable harms prison posed.

In one focus group the words “crazy” and “insane” were used over 50 times as the group discussed different policies and practices that they had witnessed in their encounters with the PADOC. One group discussed the intake diagnostic tests with a notably high level of concern for the need to be careful about the information you share during this process:

> Focus Group Participant 1: yeah. Yeah, like, like when you get classified up at Camp Hill, you have to get on [a] computer [and] answer all these questions. And a lot of them are trick questions, they're like the same question reworded like 20 times to try to like trip you up, to try to make sure that you're really picking the answer that you know you want to pick.
> FGP2: I blew through that shit. I was sitting there reading magazines,
> FGP1: because that's what a lot of people do, because they're gonna pretty much [send] you where they want to send you based on like
> FGP3: [your charges], regardless,
> FGP1: and your behavior while you're there,
> FGP3: and everybody swore up and down that that had complete dictation (sic) what programs you were gonna get and where you're gonna go [or] whatever
> FPG1: But that's not the case. And really I think it's like a tool for them [...] like some people answered it truthfully, like some to their detriment, like [it asked] ‘if you're walking down the street and you see a lady walking across the street and you're in a bad mood or something were you gonna step on the gas?’ [...]
> FGP1: Even if [you] feel like you would do that, don't put that down
> FGP3: It makes no sense, [...] if [...] you offer a test [...] and you want people to be honest, [but] then if everybody that has been honest falls in the category of it was detrimental to them, then why would you expect them to be honest? (Lewisburg Focus group, December 2022 Focus Group)

Our participants consistently regarded the intake process with skepticism and mistrust. They engaged with the diagnostic questions of intake with a focus on self-protection. The mistrust in the process demonstrates the way people feel at risk while in prison. Many participants explain the inhumane treatment they both experienced and witnessed during their periods of incarceration: “I definitely seen a lot of things that I probably shouldn't have seen, especially this last time. A lot of, a lot of (sic) abuse towards inmates. Whether it be COs. Or inmate on inmate" (Interviewee 2). Interviewee 3 explained having to form an aggressive persona as an adaptation to the harsh environment they experienced: “in prison, everything is viewed as aggressive. and if

you're not willing to... take on that role... then... you know, [you] end up having a rough, rough way to go." These types of personas are hard to shake after being released.

Another participant explained that they weren't incorporated into the intake or placement process in a meaningful way: "I felt like [with] me being a child, [and when I went in] I was a child in there…They wasn't trying to listen to what I had to say and that nobody even cared" (Interviewee 4). During intake, interviewees expressed their sense of mitigating risk. They found their former, much younger self, not being met with compassion or an orientation toward rehabilitation. Most participants were locked up at a young age and felt the experience was traumatizing and transformative - deeply shaping their identities:

> But when you come out these things confront you, and you have to grow up quickly. You have to adjust to these quickly. We can't. Even though you were a child when you went in. You're no longer a child. So you have to bridge the gap real quickly (Focus Group Participant, Philadelphia, PA November 2022).

Their descriptions of acculturation and the absurdity of the intake process strongly contradict the presentation of both PACT and PA Strong R as assessment tools to meet the needs of incarcerated people.

The intake process is the first step in a path-determinate experience that continues with prison assignment - which prison someone is in matters tremendously to one's experience and likelihood to get parole, yet this variation is rarely examined. After completing the intake process, there comes, at minimum, a transfer to one's permanent prison. In what follows, we begin to look at the differences across the 23 state institutions (21 for men and 2 for women). Intake and classification determine custody level, home institutions and subsequently determinate of the rest of the in-prison experience and parole. However, a fixed focus on individualized risk assessment obscures the varied experiences of different prisons and the likelihood of finding restorative paths. Figure 2 shows a map of the facilities, we list facilities in

the graphs throughout based on longitude going from West to East. Men and women are transferred to intake facilities in the center of the state (SCI Camp Hill and Muncy). They will then be scattered to these facilities based on the intake findings.

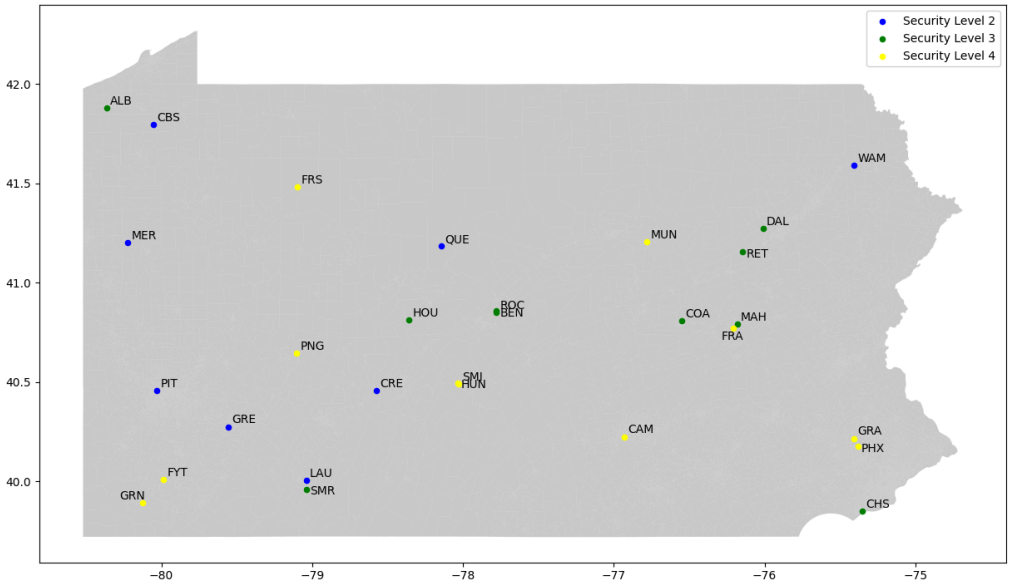


Figure 2: PADOC institutions by security level.

Table 1 shows the number of staff and the security level of each institution. These institutions are distinct in security level, location and staffing, among other things. The deafening silence of analyzing these types of variables means we know very little about how they impact rehabilitation, trauma or recovery for incarcerated people. The intake process creates a series of boxes to check in what participants describe as ineffective programming that is out of touch with their needs. We see an ongoing need to differentiate between prisons as part of understanding the in-prison experience and the ways in which incarcerated people use transfers to mitigate harm. Some experiences, staff and housing blocks are overwhelmingly deleterious for incarcerated people. People who get classified as higher risk, based on their intake, end up in highly punitive prisons with biased or corrupt COs and may spend years in solitary confinement. While others will encounter supportive counselors, have disabilities finally diagnosed, and even earn a college

degree. We have heard stories of resilience and have encountered, in our teaching and work in prisons, robust prison education programs and reentry programs run by justice impacted people that signal different pathways toward building social systems that are centered around restoration, justice and rehabilitation.

SCI	Abbreviation	County	Security Level	FTEs
SCI Albion	ALB	Erie	3	533
SCI Benner Township	BEN	Centre	3	633
SCI Cambridge Springs	CAM	Crawford	2	Closed in 2013
SCI Camp Hill	CBS	Cumberland	4	784
SCI Chester	CHS	Delaware	3	399
SCI Cresson	CRE	Cambria	2	Closed in 2013
SCI Coal Township	COA	Northumberland	3	526
SCI Dallas	DAL	Luzerne	3	643
SCI Fayette	FYT	Fayette	4	690
SCI Forest	FRS	Forest	4	666
SCI Frackville	FRA	Schuylkill	4	435
SCI Graterford	GRA	Montgomery	4	Closed in 2018
SCI Greensburg	GRE	Westmoreland	2	
SCI Greene	GRN	Greene	4	691
SCI Houtzdale	HOU	Clearfield	3	622
SCI Huntingdon	HUN	Huntingdon	4	650
SCI Laurel Highlands	LAU	Somerset	2	599
SCI Mahanoy	MAH	Schuylkill	3	581
Quehanna Bootcamp	QUE	Clearfield	Bootcamp	Not listed
SCI Mercer	MER	Mercer	2	440
SCI Muncy	MUN	Lycoming	4	562
SCI Pittsburgh	PIT	Allegheny	2	Closed in 2017
SCI Phoenix	PHX	Montgomery	4	1,200

SCI Pine Grove	PNG	Indiana	4	448
SCI Retreat	RET	Luzerne	3	Closed in 2020
SCI Rockview	ROC	Centre	3	715
SCI Smithfield	SMI	Huntingdon	4	503
SCI Somerset	SMR	Somerset	3	585
SCI Waymart	WAM	Wayne	2	683

Table 1: All institutions in the PADOC system with security level and total full time equivalent staff (FTEs) in 2023 (Lata and Fickes, 2023; PADOC, 2005).

In this vein, participants cite the means by which they bettered themselves and engaged in programming (education, job training, etc.) that helped them avoid going back to prison. They also expressed justifiable skepticism of prison programming and transfers - they often saw them as preformative, disingenuous and even punitive. The following focus group discussion on how ineffective the therapeutic community[6] program in prison ultimately is, in principle, reflective of the other elements of conversations we heard:

> FGP3: When I went through the TC, I did the TC at Camp Hill. And that was the big thing where it was like the division where it was, the FDA or the federal government views it as a disease. Well, if, if drug addiction is a disease and my point and I said this to many counselors, and everybody else, I was like, if you compare that disease to every other disease, like cancer, or anything else, how do you get treatment for that? Go to a hospital and they treat you for it, not prison. This is not a treatment.
> FGP2: The treatment's prison
> FGP1: You want us to admit that it's systemic, but you punish us for having it.

The group goes on to further discuss the failure to treat substance use disorders and the coercive nature of participation in these programs. They discuss having to simply say what the program wants in order to be released, Participant 3 noted you have to agree to the ideology of the program to "get out." These programs inadvertently redefined success away from rehabilitation for them. Instead, it was about checking a box to ultimately get parole.

[6] "Therapeutic Community" is an evidence-based program commonly assigned during intake.

Transfer and the points of institutional harm

After intake classification or after annual reclassification, one likely outcome of a change in risk status is a transfer. In their analysis of prisoner transfers in New York State Prisons, Brooks and Best's (2021) find a clear connection between transfers and the increased use of risk assessment in the late 1980s and 1990s. They note transfers have been a balm to the inherent unsustainability of an ever larger carceral population (Follis, 2015). Transfers exemplify an incurred harm to incarcerated people, but interweaving risk assessment algorithms into the decision to transfer someone obscures those harms. Cochran (2020) determines transfers have clear and measurable impacts on incarcerated people yet relatively little attention has been paid to them. A range of studies note the risks of transfers and movement (Cochran, 2020; Pryor and Thompkins, 2013), and incarcerated people experience them as "chaotic and temporally disorienting" (Brooks and Best, 2021, p. 467; see also Turnbull and Moore, 2024). We find that transfers are an embodied harm, they will determine the distance from support networks, and they will disrupt the world-making of incarcerated people. They require an adjustment to a new and different environment and that will also impact those on the cell block who are not transferred. Transfers are deployed strategically by the institutions and also by incarcerated people.

Transfers are a grueling experience. Figure 3 below shows that when people transfer, they have to travel huge distances. Transfers can happen at a moment's notice and most of them are 50 to 100 miles. This means people spend hours on a bus shackled and stressed, not knowing where they are going, they often lose their belongings and have to start over in a new community.

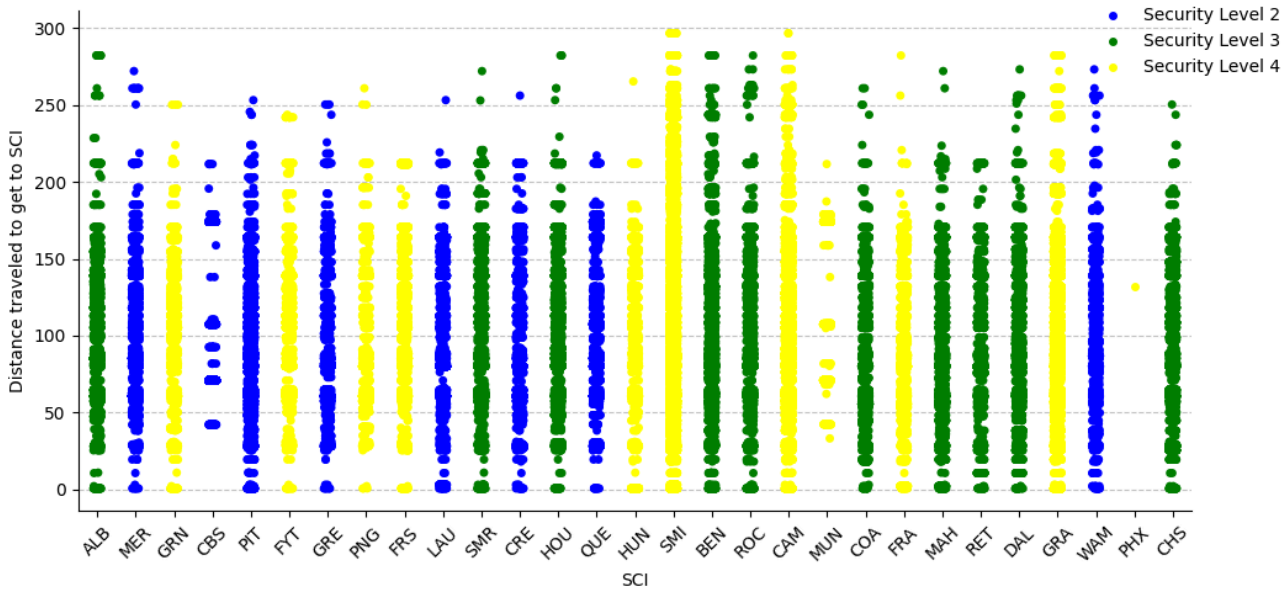


Figure 3: Distance traveled by transferred people to get to each SCI. This plot is a strip plot, a categorical scatterplot using jitter to reduce overplotting. Each row of this strip plot is a scatterplot of the distances incarcerated people travel to get from some SCI to the corresponding SCI. This plot represents 149103 moves between 2004 and 2015.

This level of disorientation and discomfort is a built-in part of the in-prison experience. Transfer is an embodied risk to be incurred and is thus used by the prison to manage and control people.

In the PADOC, when moves do happen, the reasoning is generally unclear. Our participants note beyond the embodied difficulty of the bus trip, they also have difficulty with adjusting to the new rules, new COs, and expectations of a different place. Even when they do not transfer, they note difficulties with new people coming onto their housing unit. In addition to their experiences with travel, we examined the magnitude of prison to prison transfer. Based on their descriptions, we see high levels of population change, that is institutional churn, as detrimental to incarcerated people. In Figure 4, the prisons in the PADOC have a large number of people transferring in and out.

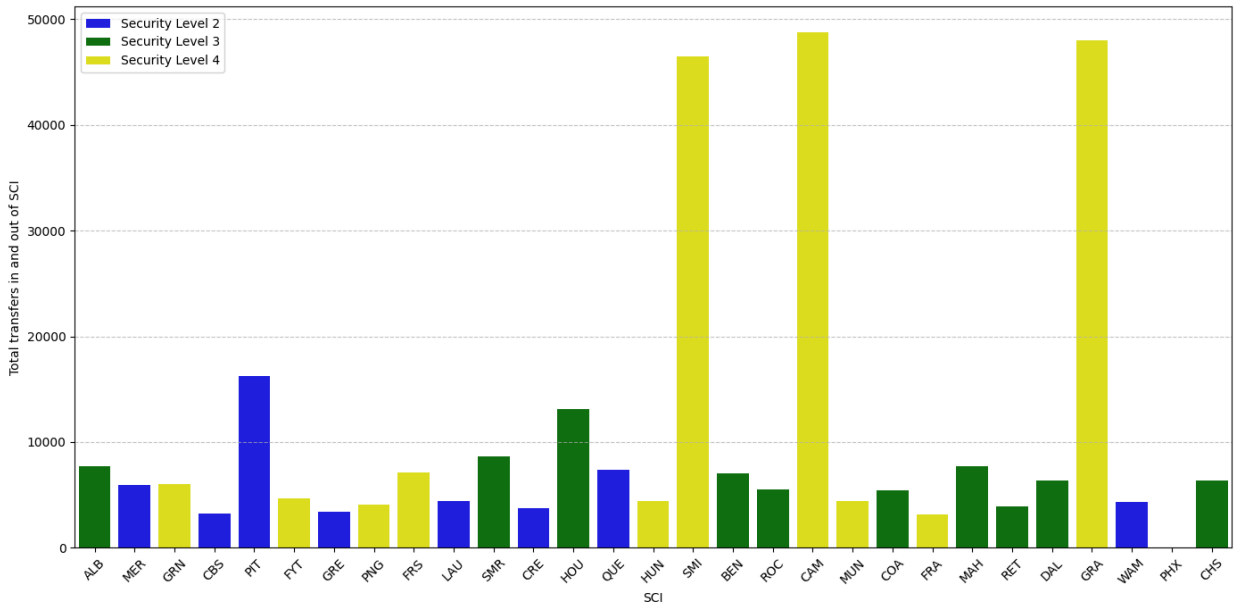


Figure 4: Institutional Churn. Each row of this bar chart represents the number of people who arrived at and left from the corresponding SCI between the years 2004 and 2015.

When we asked about transfers and moves in our interviews and focus groups, participants were much less disturbed and concerned with cell-to-cell movements and saw moving blocks and prisons much more disruptive. Many participants reported the mundane, everyday practice of moving from one cell to another. This was generally accepted and facilitated by correctional officers who also have daily lived experience of harm mitigation and shared desire for stability and low conflict. What emerges in the participants' descriptions of moves from one cell to another is that they are somewhat informal, representing world-making practices that mirror Brooks and Best's (2021) findings. As people realize they get along well, they can enter into a cell agreement to be "cellies."

> FGP1: There's another thing I remember, a person might be in a cell, say if I'm in the cell with him. And he's a youngster. He likes loud music. And maybe I don't, one of us might act out. And we don't see that as wrong. And we go to a disciplinary hearing. And we end up going somewhere else. And we ended up getting transferred or moved to another cell.
> FGP2: That's why I said to you earlier, that requesting to move to a new cell is not a big thing in prison…It's something they don't mind doing. Because they do try

> to find your comfortability [sic]. (Focus Group Participant, Philadelphia, PA November 2022)

> if you were in a cell, and you weren't comfortable. And you were all right with the [CO] you showed respect to the CO. You could, you could [move]. You know you had some pull. You could make a move and move to wherever you wanted for real. (Interviewee 1)

This ability to choose your cell mate was an essential part of mitigating harms, ensuring well-being, and finding personal growth. Many of our participants report the strong bonds they made while in prison and the impact people had on them. While these strong bonds were connected to stability, transfers often disrupted them as this story exemplifies:

> But my last cellmate was somebody that was doing life plus 40 to 80. And that is a lot of time. And normally I don't cell up with lifers, because, for the most part, we don't have much in common as far as our time is concerned…I don't wanna feel like I gotta sleep with one eye open. You know what I mean, because you might be having a bad day, and I'm snoring too loud. So you about to shut me up for good. I don't want that. I didn't wanna have to think about that…and, you know, and I'm gonna tell you the truth. It was only because of God that I stayed with [him]. [W]e were [cellies for] like a year and a half, until it was time for me to leave. But he cried. He cried when I left, because he was like, 'Bro. You don't understand, like, you know, I've never had nobody that I respected in here, that I listen to and that would talk sense like most of these dudes, you know, it's always a scheme or a hustle, or what they can get out of you,' and he was like, 'You was putting me on to, you know, using my mind instead of my fist.' And you know, he helped me in a lot of ways, too. So there are some great people that you run across in there…They might have those potentials. (Interviewee 3)

The difficulty of separation gives a window into the emotional toll of transfers. The strength of this bond and the lasting impact is one of many ways people reflect on their time in prison and its complexity. The quotes above exemplify the way people navigate movement, and allowing for cell agreements ensures stability and avoids other issues. Whereas moving without a choice is problematized:

> But it's also like I don't want to be moved like you get settled and set in and like you start to know people and like you get a routine going like moving is like disastrous at that point…[and] **all the prisons are different.** You know, rules are different in certain places. You can't do this. You can't do that. Like it's just it's, it's nerve racking. (Focus Group Participant, Lewisburg, PA December 2022)

> Interviewer: Have you ever had to move cells within the facilities?
> Interviewee 1: Quite a few times..It's like, whenever you get comfortable they just pick you up and move you to a different block. or pick you up and put in one of the programs that you have to do. And that it's a really big problem. When you get situated. You've been in a cell for 3 years with the same person or if somebody goes home, then they have something called like a cell contract that you can basically write up. (November 2, 2023)

Moving is disruptive because people deal with incarceration by engaging in a day to day mitigation of harm. Different prisons require different mitigation strategies.

One component of survival in prison is your support network, yet transfers do not account for this. Figure 5 and 6 below focus on distance from home. Figure 5 shows that people are consistently moved to the opposite side of the state from where they are from. Most people incarcerated in PA are from the Eastern part of the state. Prisons on the Western side of the state (furthest to the left on the x-axis) have the population that is farthest from home. This has the effect of many people in any given facility being hundreds of miles from their home. If you came from the Eastern part of the state, you are likely to end up in the Western part and vice versa.

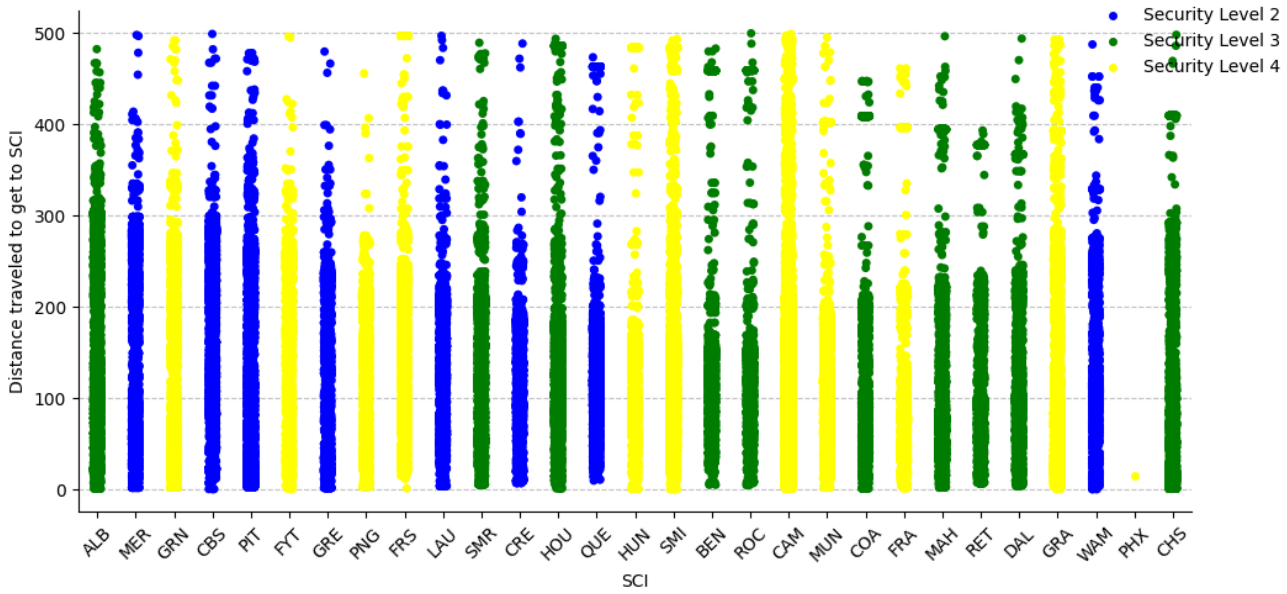


Figure 5: Distance from home. This plot is a strip plot, a categorical scatterplot using jitter to reduce overplotting. Each row of this strip plot is a scatterplot of an incarcerated person's distance between their home address on record and the corresponding SCI. The distances were limited to 500 miles to filter out individuals whose home addresses were far from Pennsylvania (many addresses were in other countries). There are 237208 distances represented in this plot representing people incarcerated between the years 2004-2015.

In Figure 6, we see that a majority of prison to prison moves ultimately put people even farther from home, in spite of efforts by people to use moves strategically to get closer to their support networks. This practice of moving people farther and farther away contradicts findings on the benefits of being close to a social support network and the importance of that network in recovery from substance use disorders and desistance.

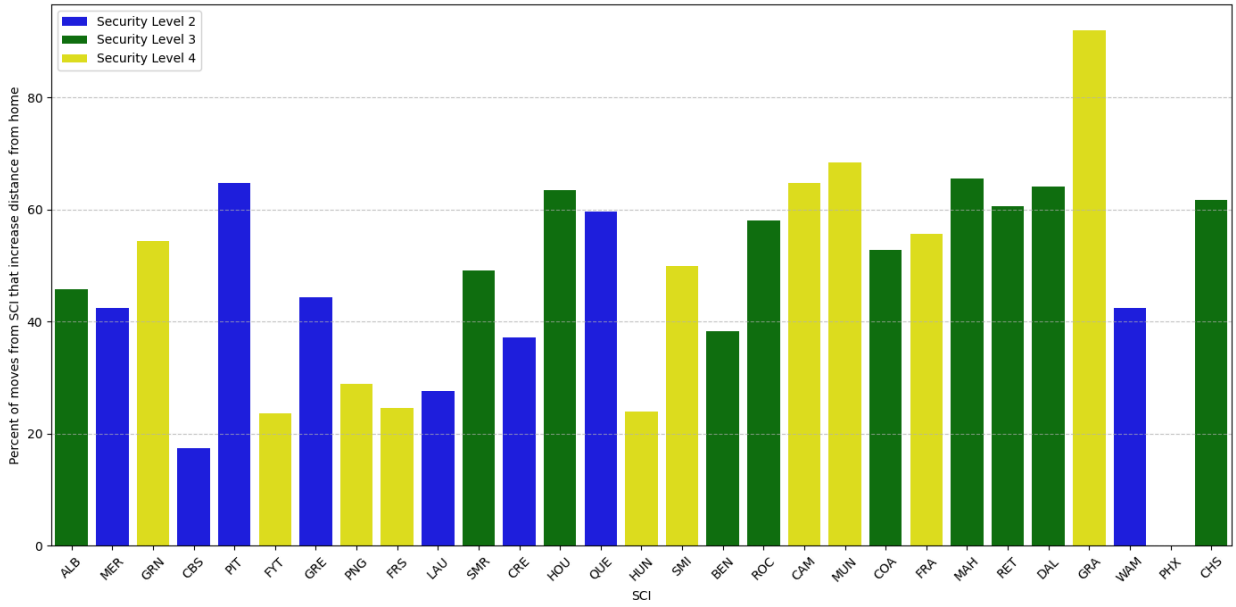


Figure 6 Moving farther from home: Each row of this bar chart represents the percent of moves out of the corresponding SCI that increased the person's distance from home. No date for Phoenix because it was not open during this period. These are all moves between the years 2004 and 2015.

While many made in-prison moves to have a cell mate they got along well with, the desire to be close to their support networks was a reason to undergo the difficulties of transfer. Yet, the figures above show how unlikely that ultimately was as an outcome. Rather, we found that because prisons and prison units vary widely, our participants reported using transfers strategically when possible to mitigate the challenges of incarceration. Our participants did not

believe decisions and things that happened to them while incarcerated were about improving their lives or conditions. They could have beneficial outcomes and positive relationships with people who worked in their prison, but they were keenly aware of how any benefit they were getting was related to the benefit of the staff person, too. To put it simply, participants never saw the goal of any prison program, transfer or housing arrangement as something designed by a desire for restoration or rehabilitation.

This sentiment is compounded by how often transfers came as the result of disciplinary action (which are one outcome of misconducts). Put otherwise, the prison's "disciplinary system is such that infractions inform security designations and are therefore linked to transfers; people are moved and removed from carceral institutions according to such reiterated processes of risk forecasting and classification" (Brooks and Best, 2021, p. 466). The prison's disciplinary process involves the categorization of offenses by severity, with higher-level violations triggering a recalibration of risk in the form of an updated security classification. Instruments for security classifications use inputs, such as a disciplinary report or violation, in their security designation calculations (Austin, 2003). Thus, an infraction can result in a transfer, and we find that also means bodily harm, disruption and being further removed from your support network at home.

Misconducts and Restrictive Housing

While our participants describe mitigating against harm during their time, this contrasts the ways in which the mythological techno-sophistication of predictive risk assessment obscures their experiences by discursively positioning them as the locus of risk. This positioning undergirds the entire transfer process, but arguably nothing lays this more bare than the use of restrictive housing (i.e., solitary confinement)[7]. Once someone is deemed "high risk" by the

[7] The PADOC does not acknowledge the use of solitary confinement as such, but several of its housing units meet the definition of the term. They primarily use the term "restrictive housing" and the "restrictive housing unit" (RHU). People in RHU are on DC or AC status (Harry, 2024, 2024). DC is disciplinary

institution - for whatever reason, be it a misconduct, a prediction based on the gravity of their crimes, or their protected disability status, this then justifies a transfer into a restrictive housing unit. This experience is one of the most damaging and dangerous experiences of incarceration and it is solely constructed by the institution.

Focus group participants regularly related the arbitrary nature of disciplinary actions and subsequent experiences with restrictive housing. One participant received a disciplinary action with 30-days of cell restriction for "reckless eyeballing," which he explained is "when you look at a woman too long than what you're supposed to." Other people in the focus group also knew what it was as did people in our second focus group, signaling a widespread use of arbitrary disciplinary actions. The participant who faced the original charge interpreted the severity of the punishment to be an expression of power over him.

Our participants viewed disciplinary actions (stemming from misconduct charges) overall as overt displays of power. The potential for harm (i.e., punishment) stemming from a misconduct charge was seen as a clear means for control. Figure 7 shows the average monthly misconduct range for each SCI.

custody and AC is administrative custody. While both groups are experiencing solitary confinement, the PADOC distinguishes between solitary confinement as punishment for misconducts (RHU-DC) and solitary confinement to ensure safe functioning of the prison (RHU-AC). Restrictive housing units are deployed for a wide range of reasons and both of the structures meet the Human Rights Watch definition of "solitary confinement": the restriction of people in closed cells for 22 or more hours per day (Kiebala et al., 2023). Our participants call restrictive housing "the hole." Their description matches what the PADOC calls Restrictive Housing Units and human rights organizations term "solitary confinement."

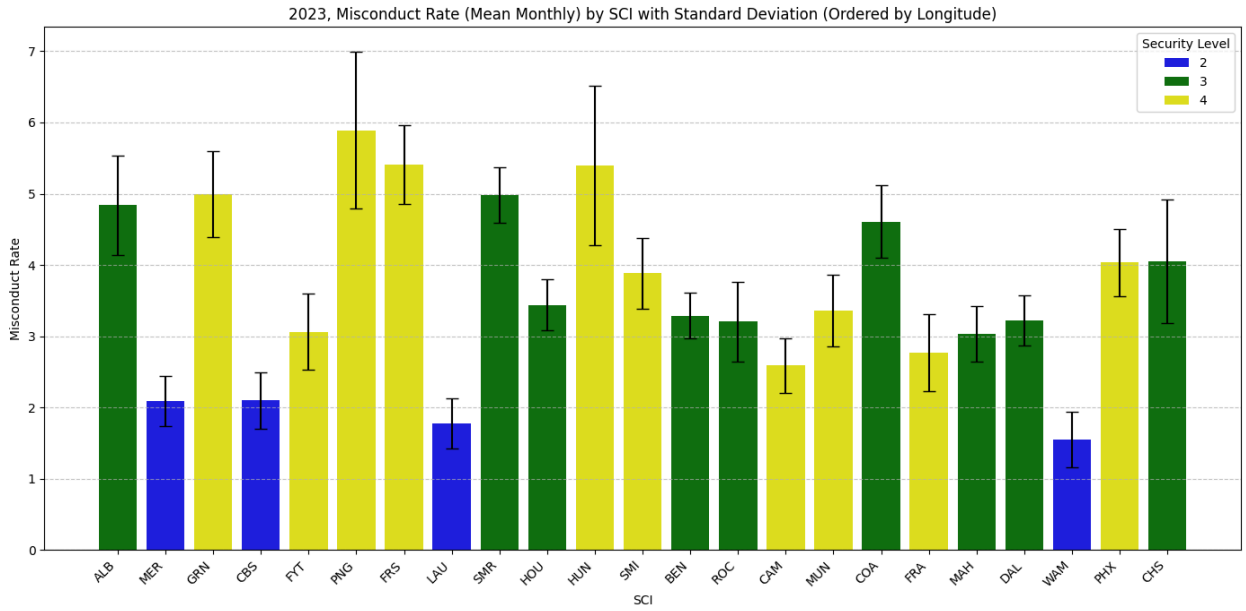


Figure 7: Mean Monthly Misconduct rates by SCI ordered from East to West. There is not a clear relationship between security level and misconduct rate. Higher security prisons in the western part of the state have higher rates of misconduct.

Misconduct charges are arbitrary and capricious, but they are then used in risk assessment algorithms (such as Strong-R that determines custody levels and parole outcomes among other things), creating a feedback loop with risk assessment and transfers. Further, if you are new to a prison you are more likely to end up getting a misconduct, our participants felt they are written to put people in their place. While misconducts do not always lead to restrictive housing, there is a clear relationship. Further, the mental deterioration caused by restrictive housing, could lead to additional misconducts.

All facilities in the state have restrictive housing units and consistently have people housed in them as shown in Table 2 below. This table gives a snapshot of misconduct rate by institution as well as the percentage of people in restrictive housing in that facility. Prisons with a higher misconduct rate have a higher percentage of people in restrictive housing. Particularly elevated use of "Disciplinary Custody" (Restricted Housing DC), but "Administrative Custody (Restrictive Housing AC) was also linked to disciplinary action.

SCI	Percent capacity	Population	Restricted Housing AC	Restricted Housing DC	Percentage in Restricted Housing	Misconduct Count	Misconduct Rate
ALB	92.86	2,019	20	92	5.58	9,768	4.84
BEN	82.31	1,751	29	46	4.25	5,755	3.29
CAM	64.91	1,876	42	44	4.59	4,852	2.59
CBS	78.10	816	1	10	1.32	1,713	2.10
CHS	92.73	1,081	15	30	4.21	4,386	4.05
COA	94.44	1,818	34	47	4.47	8,374	4.61
DAL	95.99	1,878	56	32	4.67	6,045	3.22
FRA	90.46	1,051	12	30	3.95	2,917	2.77
FRS	87.94	2,042	61	94	7.62	11,058	5.41
FYT	84.24	1,812	54	80	7.43	5,569	3.06
GRN	86.31	1,577	111	80	12.13	7,865	5.00
HOU	94.87	2,131	19	88	5.01	7,332	3.44
HUN	88.75	1,840	51	66	6.36	9,976	5.39
LAU	113.86	1,328	6	13	1.49	2,361	1.78
MAH	95.97	2,052	26	61	4.25	6,214	3.03
MER	94.13	1,178	10	19	2.44	2,473	2.09
MUN	72.33	1,038	12	22	3.20	3,494	3.36
PHX	84.97	2,801	164	101	9.47	11,291	4.03
PNG	88.38	910	22	63	9.44	5,354	5.89
ROC	92.45	2,028	31	63	4.65	6,515	3.20
SMI	81.35	1,057	13	12	2.40	4,092	3.88
SMR	85.39	1,688	34	57	5.41	8,410	4.98
WAM	117.58	947	5	8	1.36	1,476	1.55

Table 2: Misconducts, Percent Capacity and Restrictive Housing over 2023. Each entry is a mean of the quantity indicated in the column computed over 12 months of 2023 for the corresponding SCI. Percentage Capacity, Population, Restricted Housing in Administrative Custody (AC) and Disciplinary Custody (DC) for each SCI are computed from PADOC's publicly available monthly reports. The columns on misconducts are computed using data available to us using the research request for PA DOC data.

Restrictive housing represents a key harm of incarceration. Almost everyone we interviewed had personally spent time in "the hole" and it was impossible to distinguish between the categories the PADOC assigned to restrictive housing in our interviews and focus groups. Versions of restrictive housing are used widely by the PADOC. In fact, it is standard practice to severely restrict movement during intake. The VERA Institute reports that many placements into Restricted Housing Units also stem from slow and inadequate intake and transfer processes. This restriction during intake came up in our interviews and it is even discussed online in reddit threads (Brodiecon, 2023). In addition to use during intake ostensibly to keep the prison secure, restrictive housing is used as punishment and to manage the mentally ill. The use is so widespread that Columbia's Justice lab found that: "11% of all black men in Pennsylvania, born between 1986 to 1989, were incarcerated in solitary confinement by age 32." (Pullen-Blasnik et al., 2021).

In spite of its wide-spread use as a way to "reduce risk," solitary confinement is well-documented as having harmful and long-lasting effects. Given the likelihood of spending time in solitary confinement and its well-documented harms (Herring, 2020), it analytically supports a notion of the prison as harmful - yet risk assessments do nothing to evaluate it or its impacts. Rather, risk assessments are used to justify their use.[8] In our interviews, participants highlight the focus on punishment as they are acculturated to prison life. The harms of such an approach are clear for our participants:

[8] In the PADOC policy documentation, they note the use of restrictive housing and single-celling during assessment periods (see pages 5-4 to 5-9 of the PADOC 11.2.1, Reception and Classification Procedures Manual). They go on to explain that "An inmate at a less restrictive custody level may be rewarded through a progressive system of program incentives and privileges consistent with his/her custody level." and "An inmate who has a less restrictive custody level may be afforded additional incentives in light of his/her lower levels of facility misconduct and **risk**." (Harry, 2023, pp. 6–1).

> I did, I mean 6 straight months [in Solitary]. And for most people, if you're not [...] strong enough to deal with being alone with yourself and your thoughts, it breaks a lot of people. (Interviewee 3, November 3, 2023)

We see mental wellness as intimately tied to the use of solitary confinement - effectively a prison within the prison. It is surprisingly easy to end up in solitary confinement - a condition well documented to negatively impact wellness. Interviewee 1 described the impact of solitary confinement: “you see human beings throwing human concoctions on each other because they can't get outside of a fence. That is the most horrific, disgusting sight that you could ever see, when you see some man getting [blood and shit in a bottle] thrown on them…and they're like throwing it at each other like freaking animals…seeing stuff like that really would impact somebody's mind" (Interviewee 1).

The deployment of restrictive housing stems from the fundamental insufficiency of a punishment logic to address the wide range of social needs that land people in prison. Prison is a system that is deeply premised on individual control. The prison seeks to control the individual and also maintains the myth that individuals fully control themselves. The underlying logic of this drives risk assessment and the widespread use of restrictive housing. The need to incapacitate “risky” people is reinforced through risk assessment tools and this justifies underlies the logic of transfers, restrictive housing and general social reliance on confinement. Harm qua punishment becomes the point. The logic assumes anyone in prison and, subsequently, in a restricted housing unit, is there to ensure protection and security - just not of them.

These use of restrictive housing remains high even after the PADOC settled with the Department of Justice in 2015[9] regarding its use of solitary confinement for people with serious

[9] The Special Management Unit (SMU) was a program to move out of RHU for “an offender who exhibits behavior that is continually disruptive, violent and dangerous, or a threat to the orderly operation of his assigned facility.” The SMU had three phases prior to settling with the DOJ. There is no maximum time for each phase, the minimum before graduating to the next phase is three months. According to Klopotski’s testimony, someone in SMU will spend a minimum of one year in SMU before phase 1

mental illness and intellectual disabilities (SMI/ID)[10]. The long-defended use of solitary confinement for people with serious mental health concerns is especially egregious. Officials have consistently doubled down on solitary confinement as beneficial and as necessary to keep prisons safe in spite of state-level investigations in 2010 and a lawsuit by the Department of Justice shortly thereafter. In Deputy Secretary Michael D. Klopotski's 2010 testimony to the Pennsylvania State House Judiciary Committee, he asserts restrictive housing for the mentally ill maintains a safe prison environment. He argues it is necessary to successfully implement rehabilitative programs: "house those offenders who, through their own demonstrated behavior, cannot function in the general population; thereby placing the safe prison environment in jeopardy" (Klopotoski Testimony Aug 2, 2010). His testimony makes clear the difficulty imagining prison without this tool for control through harm. While the policy documentation reflects changes since Klopotski's testimony, the logic underlying its use remains. The RHU is still used to "securely house" someone who has received a disciplinary sanction or who has been placed on Administrative Custody for non-disciplinary reasons because their presence in the general population is *risky*.

While Klopotski testifies in 2010 to the importance of restrictive housing to the prison and insists abuse is not tolerated and placement is not arbitrary, this seems to deny the reality of solitary confinement as a racialized tool within a racialized tool (Sumell et al., 2006). The use of solitary confinement is well documented to exacerbate, or even cause, mental deterioration which is unlikely to improve the safety of the facility.

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moves them to the general population on a probationary status. Lastly the SSNU is structured similarly to the SMU but is specifically for people with "significant mental health concerns" (Klopotoski Testimony Aug 2, 2010).

[10] The PADOC uses one variable for this group: Seriously Mentally Ill/Intellectually Disabled (SMI/ID), despite large differences between intellectual disabilities and serious mental illness as well as the range of differences within both of those categories. We contend that the very collapsing of the variable signals an inadequate capacity for serving a range of higher needs.

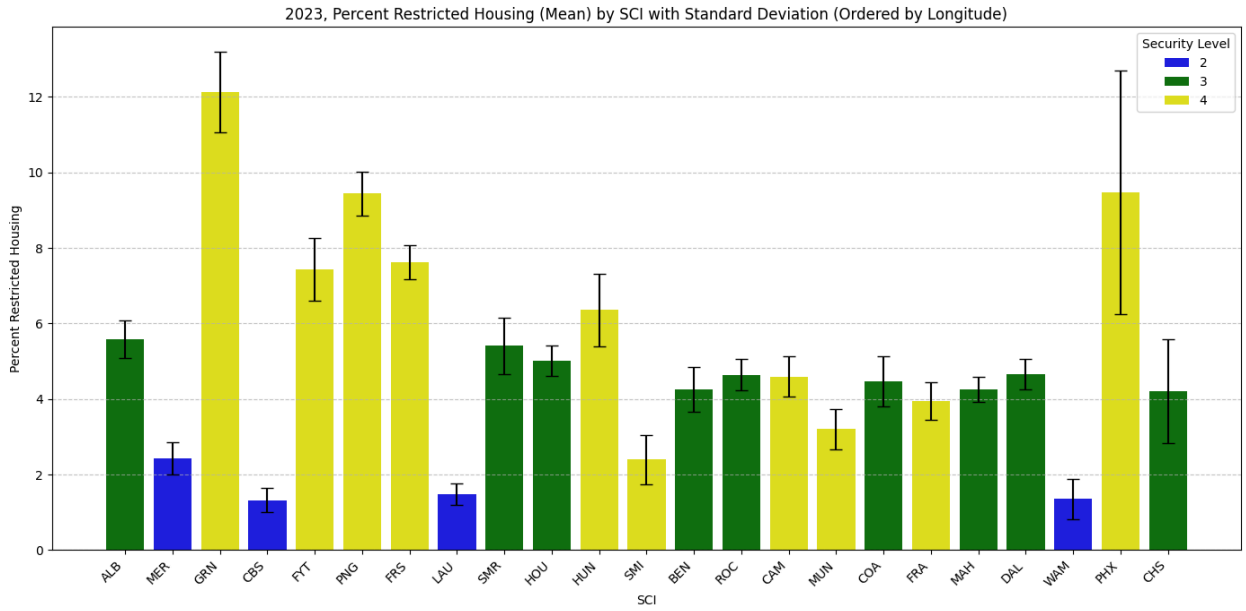


Figure 8: Restricted Housing Rate by SCI

Similarly, experiencing such severe treatment while incarcerated similarly seems antithetical to the goals of achieving community safety through rehabilitation. Interviewee 7 reported incarceration exacerbated his claustrophobia: “being in cells, it made it worse…and like big groups of people I can't, and, like, I can't stand[...] the loud noises and stuff like brings back like some PTSD. From being in the jail.” Interviewee 2 building on the abuse he witnessed, felt his anxiety had increased after being incarcerated. Given these lingering outcomes, it is not a surprise that Interviewee 4 also expressed, "I've realized, like recently that it’s, it's been harder to, like, get a positive relationship - have a positive relationship with anybody. Whether that be a significant other, or family members, friends." These narratives, combined with our data analysis, show that incarceration is not *improving* mental well being. People who were initially classified as B - “history of mental illness but currently stable,” we found 10 percent of a group with a prior needs history ended up with an active mental health need. While we remain cautious in taking large leaps of speculation from this summary analysis, we note the very actuality of not

assessing mental health outcomes is reflective of a focus on the individual and not a system-wide assessment of impacts.

Navigating the harms of incarceration

We found that the policies regarding the deployment of intake, transfers and restrictive housing open a window into how the PADOC enacts any expectation of treatment or rehabilitation. Even though the documented harms are clear, the PADOC has a deeply embedded assumption that transfers and restrictive housing are beneficial to the prison and prisoner because it ensures control. Further, in spite of legislative demands to ensure rehabilitation, it overwhelmingly seems to be the case that the individualized risk assessment mirage remains. The PADOC has incorporated, in line with federal law, a "Risk Needs Assessment Tool," but this does not change the underlying logic. The stated outcome, deterring 'bad' behavior, does not inherently lead to rehabilitation. The system is experienced as damaging at worst and ineffective at best. One focus group participant explained, "They don't want you to be successful. God forbid you're… you have more knowledge than whoever it is, is trying to teach you something that's the worst of the worst." (Participant 3 34:33, Lewisburg Focus Group, December 2022).

This belief stems from a denial of carceral harm and incarcerated peoples' ability to assess their needs. The carceral approach of individualized risk and obscuring institutional harm carries over after release:

> I had treatment courts [telling me] I couldn't have a job for four months. [...]They were like you have to do this, this, this, and, like, community service, all these other things. It's like the most important thing, for me, as an adult, is to have a job and some stability, some financial health where I can actually, like, be okay. And like they, they're just like, 'No, there's beer in the restaurant. You can't work there.' Like, insane. 'They serve liquor, so you can't work there.' Just crazy. None of it makes sense. (Participant 2, Lewisburg Focus Group, December 2022)

This group clearly and quickly articulated the simple possibilities for structuring a system that would at least mildly help them be successful upon release. These suggestions, if done, surely would

improve security and stability in the prison, yet they remain unexplored and unassessed. Participant 2 discussed the extremely low payment for jobs while in prison:

> FGP2: I mean, their jobs are [...]but the [...] biggest thing that would help was, like, if people that were incarcerated could actually get paid.
> FGP3:Like, an actual wage
> FGP2:Could you imagine! Like, like, I mean, even if it was a minimum wage, but like, you're doing a four year stretch and you come out and you have nothing. Your job prospects are trash, like you're a felon and you can't get nothing.
> FGP3: And they wonder why recidivism rates are so high.
> FGP2: …Every single person in there would be like, please sign me up [...], I'll work for sure. 20 hours a day. That way, when you come out you have like, some [...] financial cushion. Instead of like, you're sleeping on your mom's floor in your basement…So I mean, a job would be helpful if it paid, a job that pays 10 cents an hour. It's not, [...] very helpful. (Lewisburg Focus Group, December 2022)

Their expressed desire for wages is a desire to be treated like humans and to be cared about as humans who bring worth to their spaces and communities through their labor. Their ability to imagine simple, cost effective ways to ensure meaningful rehabilitation and to reduce recidivism stand in stark contrast with the system's inability to provide them.

The compounding impact of the intake process, widespread use of solitary confinement, ineffective programming build a sentiment that the facility is not built to help you. Day to day neglect and indignities confirmed this sentiment for our participants:

> Absolutely not. You're not getting any medical care. They don't care [about] you. You gotta have like a serious, like documented condition. The only thing they'll do like is, if something, actually happens. They'll furlough you. They'll kind of like, they'll chain you to the bed. (Lewisburg Focus Group, December 2022)

The driving force behind these sentiments of prisoner mistrust of the prison and its staff come from their lived experience. They described waiting months to see a counselor and not being able to get tylenol for headaches.This is compounded with the lack of medical care and response they personally had witnessed during their time incarcerated:

> I'm saying, like, they don't even respond to medical emergencies. Like they were treating this dude like 'Oh, come on get up,' like, 'you're faking it.' You know, like he was, like, literally dying on the floor. It made everybody go in from yard and we sat, because I can see where he was. He sat there for like two hours, two and a half

> hours, before a stretcher finally came down. He was dead. (Lewisburg Focus Group, December 2022)

It seems unlikely that an incarcerated person is going to take an intake process or treatment plan's assessment of need seriously or believe their time in prison will help them if they are witnessing this and subsequently feel *at risk*. Participants describe in various ways the difficulty of entering and adjusting to prison "some people when they first go in with that long stretch of time act crazy" (December Focus Group Lewisburg, PA).

We did find that some needs are met and some participants report personal growth and healing they found during their time (Olivares-Pelayo, forthcoming this issue), we find that this never seemed to be the intended goal. Not surprisingly, in spite of the growth during their time, people did not find themselves well prepared to do well after release. Participants note their difficulty adjusting to life after incarceration: "I experienced culture shock after my first incarceration" (Interviewee 1). One focus group participant explained the difficulty of adjusting to being outside of prison after his initial release: " I was depressed, and I had anxiety. And that was after being locked up for [only] a year" (December Focus Group, Lewisburg PA). Another interviewee explained the difficulty adjusting to life after they were released from prison: "I definitely would say when I, when I got out for at least a few months after that I was definitely institutionalized. I was doing some things that, like, I was doing in jail, like, I couldn't, I couldn't shower or use a bathroom or anything with the door closed or [...] I couldn't have people behind me" (Interviewee 4).

Incarcerated people are adept at navigating the harms prison pose and they are savvy about the differences between institutions. In examining their navigations of the uneven geographies of harm, we see the analytic space to call for an abolition of predictive risk assessment models. Risk assessment models obscures the realities of prison life - in particular the

harms and vulnerabilities of incarceration. The intake process feels overwhelming, scary, and arbitrary. People are regularly put into solitary confinement at the expense of their mental wellness. Those who already suffer from serious mental illness or intellectual disabilities are not adequately treated. They also obscure the programs developed by justice impacted people that are not consistent across institutions, but that people seek (Shockley, 2023). We attempt to build a critical lens to counter actuarial methods where prisons (not incarcerated people) are differentiated based on their potential for harm. Our analysis finds that prison is not a flat, universal experience. It is contextualized and varied based on location.

Recognizing the harms that time in prison causes in order to make an analytic shift relocating the site and meaning of risk is an expressly abolitionist project. Shifting to "risk and needs assessments" exemplifies almost too perfectly the policy effort to maintain the structural logic of predictive risk assessment. Modification of risk assessment obscures the abject failure of the prison system writ large. An assessment of the harm prisons pose supports an abolitionist argument that the criminal punishment system is not worth the costs.

While we maintain from an abolitionist frame that prisons are a structural failure and should be abandoned, in the meantime, it remains necessary and worthwhile to consider the varied experiences of people in prisons. Despite introducing harm and risk in the lives of individuals, conditions and staff at some prisons do facilitate openings for healing, education, betterment, and rehabilitation. Even within a prison, some programs and staff offer rehabilitative opportunities while others do not. There is a need to nuance the variations in experiences - distinguishing between experiences that transform to a less repressive experience for those inside and the experiences which pose the highest risk and most harm. Furthermore, evaluating differences across prisons undermines the insistence from correctional officials that the

differential experiences are the sole result of individual choices and behaviors of those incarcerated. Rather, prisons need to be assessed for the impacts they have on said individuals - the institution is the context for individual behaviors and decisions and that context varies widely.

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